

CITY OF PLANTATION



REQUEST FOR QUALIFICATIONS

RFQ NO. 100-21

“AUTOMATED LICENSE PLATE RECOGNITION SYSTEM (ALPR)”

BID OPENING DATE: DECEMBER 7, 2021

BID OPENING TIME: 11:00AM

MANDATORY PREBID MEETING

Date: November 2, 2021

Time: 11:00AM

Location: City Hall Council Chambers

CONTACT PERSON: GEORGE BARBER

ADDRESS: 400 NW 73RD AVENUE, PLANTATION, FL 33317

EMAIL: GBARBER@PLANTATION.ORG

PHONE NUMBER: 954-797-2205

PROCUREMENT DEPARTMENT



Procurement Department
400 NW 73rd Avenue
Plantation, FL 33317
Telephone: (954) 797-2647
Fax: (954) 797-2649

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LEGAL ADVERTISEMENT

REQUEST FOR QUALIFICATIONS # 100-21; AUTOMATED LICENSE PLATE RECOGNITION SYSTEM (ALPR)

October 15, 2021

The Sun Sentinel
333 SW 12 Avenue
Deerfield Beach, FL 33442

Attention: Legal Advertisement Department

Please publish the following Notice to Firms in your Fort Lauderdale News ONLY, TWO TIMES, one time in two consecutive issues, as soon as possible:

Automated License Plate Recognition System (ALPR)
CITY OF PLANTATION

All Responses will be received electronically via the Demand Star website on or before **11:00 am. on Tuesday, December 7, 2021**. Bid Documents may be obtained electronically at:

<https://www.demandstar.com/app/agencies/florida/city-of-plantation-procurement-division/procurement-opportunities/9b6d13fb-3874-4291-9605-81cf63387a40/>.

Bids will not be considered and cannot be entered online after the above referenced date.

There is a mandatory pre-bid meeting on November 2, 2021 @ 11:00am:

If a Bid Bond is required for this solicitation the original bid bond shall be received at the Office of the City Clerk, City of Plantation, 400 NW 73rd Ave, Plantation, Florida 33317, **BEFORE** the due date of the solicitation.

Bids will be opened, read and recorded pursuant to State of Florida Law and City of Plantation code.

All questions may be addressed in writing to the George Barber, Procurement Administrator, 400 NW 73 Avenue Plantation, Florida. George Barber can be reached at 954-797-2205, Monday Through Friday, 8AM to 4:30PM, Email: Gbarber@plantation.org.

The City reserves the right to reject any and all proposals and to accept the one that is in the best interests of the City.

NOTICE TO FIRMS

REQUEST FOR QUALIFICATIONS # 100-21

The City of Plantation, Florida is soliciting proposals for the services that will generally consist of, but is not limited to, the following:

The City is seeking proposals from qualified firms to provide an Automatic License Plate Recognition (ALPR) System. The Automatic License Plate Recognition (ALPR) System is proposed to provide enhanced security for the residents by continuously monitoring the vehicles entering, leaving, and traversing the City. The distributed (ALPR) Systems shall be linked to a central management server that will function as a primary interface point. The server will have the ability to "process information" which will allow the City to monitor activity and perform investigations; improving the overall safety of the City. The (ALPR) Systems must be fixed and able to read rear-view license plates.

Proposal Documents may be obtained electronically at:

<https://www.demandstar.com/app/agencies/florida/city-of-plantation-procurement-division/procurement-opportunities/9b6d13fb-3874-4291-9605-81cf63387a40/>.

Proposals will not be considered and cannot be entered online after the above referenced date and time. All Responses will be received electronically via the Demand Star website (www.demandstar.com) on or before **11:00 am. on Tuesday, December 7, 2021.**

There is a mandatory pre-bid meeting on November 2, 2021 @ 11:00am:

Location: City Hall Council Chambers – 400 NW 73rd Avenue, Plantation, FL 33317

If a Bid Security is required for this solicitation the original bid security shall be received at the Office of the City Clerk, City of Plantation, 400 NW 73rd Ave, Plantation, Florida 33317, **BEFORE** the due date of the solicitation.

Proposals will be opened, read and recorded pursuant to State of Florida Law and City of Plantation code.

Detailed specifications containing Instructions and Bid Forms may be obtained from George Barber in the Procurement Department, 400 NW 73 Avenue, Plantation or through the Plantation website of www.Plantation.org. The bid may also be obtained from the www.Demandstar.com website. All questions may be addressed in writing to the **Procurement Administrator, George Barber**, 400 NW 73rd Avenue, Plantation Florida 33317. George Barber can be reached at 954-797-2205, Monday through Friday, 8AM to 4:30PM, Email: Gbarber@plantation.org.

Pursuant to Broward County Ordinance No. 2011-19 and City of Plantation Resolution No. 12242, this solicitation requires that each PROPOSER must be registered as a Vendor with the CITY prior to or contemporaneous with submitting a proposal. Vendor registration can be completed at www.Plantation.org.

As a further condition precedent for consideration of any proposal, such proposal must strictly comply with the Instructions to Firms as issued by the City. The City reserves the right in its sole discretion to reject any proposal which does not strictly comply with said Instructions to Firms and further reserves the right to accept or reject any proposal as set forth in said instructions.

INSTRUCTIONS TO FIRMS

REQUEST FOR QUALIFICATIONS # 100-21

DEFINED TERMS

The following terms have the meanings indicated which are applicable to both the singular and plural thereof.

1. **FIRM**: Means any individual, firm, partnership, corporation, association, or other legal entity.
2. **CITY REP**: City of Plantation, Mayor Designee
3. **CITY**: The City of Plantation, a Florida municipal corporation
4. The words ‘proposal’ and ‘qualifications’ are considered interchangeable.

AUTHORITY AND GENERAL TERMS AND CONDITIONS

1. It is the intent of the City to award the proposal to the responsive FIRM providing a response which is most advantageous to the City. This proposal is issued pursuant to, and governed by the laws of the State of Florida.
2. The City of Plantation reserves the right to reject any or all proposals, to waive any informalities or irregularities in any proposals received, to re-advertise for proposals, to enter into agreement negotiations with the selected Firm or take any other actions that may be deemed to be in the best interest of the City of Plantation.

GENERAL AGREEMENT PROVISIONS

1. The written AGREEMENT between the successful FIRM(s) and the CITY shall include language to the effect that neither the AGREEMENT, nor any portion thereof, nor any other facet of the relationship between the parties will create or be deemed to create a partnership, joint venture, joint enterprise, as a Sub-FIRM, or any other agency relationship, or an employer/employee leasing relationship, and further, shall reflect the CITY's intent that the legal relationship between the parties shall be that of an independent FIRM.
2. Upon THIRTY (30) Calendar Days written notice to FIRM, CITY may, without cause and without prejudice to any other right or remedy, terminate the Agreement for CITY's convenience whenever CITY determines. Where the Agreement is terminated for the convenience of CITY, the notice of termination to FIRM must state that the AGREEMENT is being terminated for the convenience of CITY, the effective date of the termination and the extent of termination.
3. The Agreement may also be terminated by mutual agreement at any time and under any terms.
4. The FIRM shall comply with all existing and future applicable laws, ordinances, rules, regulations, and lawful orders of public authorities relating to the Project and shall give all applicable notices pertaining to same.

INSTRUCTIONS TO FIRMS

REQUEST FOR QUALIFICATIONS # 100-21

5. The laws of the State of Florida shall govern the validity, construction and effect of this AGREEMENT.
6. Should any part, term or provision of this Agreement be by the courts decided to be invalid, illegal or in conflict with any law of the State, the validity of the remaining portion or provision shall not be affected thereby.

INTERPRETATIONS AND ADDENDUM

1. If Firm is in doubt as to the meaning of any of this RFQ Proposal Documents, believes that the General Conditions, Special Conditions and/or Statement of Work contain errors, contradictions or obvious omissions, or has any questions concerning information contained in this RFQ document, the Firm shall submit a written request to Procurement for interpretation or clarification. Such request must reference RFQ No. 100-21 and should be received by the Procurement Office at least ten (10) calendar days prior to the RFQ due date. Questions received thereafter, may not be answered. Interpretations or clarifications in response to such questions will be addressed via written addendum which shall be available for download electronically from the Demand Star website at www.demandstar.com, or by contacting George Barber (gbarber@plantation.org). The issuance of a written addendum shall be the only official method whereby such an interpretation or clarification will be made.

CONTINGENT FEES PROHIBITED

1. The proposing Firm must warrant that it has not employed or retained a company or person, other than a bona fide employee, contractor or subcontractor, working in its employ, to solicit or secure an agreement with the City, and that it has not paid or agreed to pay any person, company, corporation, individual or firm other than a bona fide employee, contractor or sub-consultant, working in its employ, any fee, commission, percentage, gift or other consideration contingent upon or resulting from the award or making of an agreement with the City.

SUBMISSION OF SEALED RESPONSES

1. Sealed Responses must be submitted electronically via the Demand Star website.
2. All Sealed Responses shall be submitted in the English language.
3. Sealed Responses must contain a signature of a corporate officer or designee with proven authority to bind the firm in matters of this nature. The Address and Phone number for any communications regarding Sealed Response must be included.
4. Sealed Response shall contain an acknowledgment of receipt of all Addendum(s).
5. Sealed Responses by corporations must be executed in the corporation's legal name by the President or other corporate officer, accompanied by evidence of authority to sign. Evidence of authority shall be provided on the enclosed Certified Resolution form, or by the company's own Corporate Resolution.
6. Sealed Responses by partnerships must be executed in the partnership name and signed by a partner, whose title must appear under the signature.

INSTRUCTIONS TO FIRMS

REQUEST FOR QUALIFICATIONS # 100-21

7. In accordance with Florida Statutes, Chapter §119.07(1) (a) and except as may be provided by other applicable state and federal law, the Request for Sealed Proposals and the responses thereto are in the public domain. However, Firms are requested to specifically identify in the submitted Sealed Response any financial information considered confidential and/or proprietary which may be considered exempt under Florida Statute §119.07(t).
8. The City of Plantation will not be liable for any cost incurred in the preparation submission, or review of any Sealed Response or Response at any point of the procurement process.

MODIFICATION AND WITHDRAWAL OF SEALED RESPONSES

1. Sealed Response may be modified or withdrawn by a duly executed document signed by a corporate officer or other employee with designated signature authority. Evidence of such authority must accompany the request for withdrawal or modification. The request must be electronically delivered to the DemandStar at any time **prior** to the deadline for submitting Sealed Responses. Withdrawal of a Sealed Response will not prejudice the rights of a Firm to submit a new Sealed Response prior to the Sealed Response opening date and time. No Sealed Response may be withdrawn or modified after the date of proposal opening has passed.
2. If, within twenty-four (24) hours after Sealed Responses are opened, any Firm files a duly signed, written notice with the Procurement Office, and within five (5) calendar days thereafter demonstrates to the reasonable satisfaction of City, by clear and convincing evidence, that there was a material and substantial mistake in the preparation of its Sealed Response, or that the mistake is clearly evident on the face of the Sealed Response, but the intended correct Sealed Response is not similarly evident, Firm may withdraw its Sealed Response.

OPENING OF PROPOSALS

1. Proposals will be opened, read and recorded pursuant to State of Florida Law and City of Plantation code.

PROPOSALS TO REMAIN SUBJECT TO ACCEPTANCE

1. All proposals MAY remain subject to acceptance for ninety (90) days after the day of the Proposal opening.
2. Extension of time when Proposals shall remain open beyond the original period may be made only by mutual agreement between CITY and the FIRM.

REJECTION OF PROPOSALS

1. To the extent permitted by applicable state and federal laws and regulations, City reserves the right to reject any and all Sealed Responses, to waive any and all informalities not involving price, time or changes in the work with the Firm, and to disregard all nonconforming, non-responsive, unbalanced or conditional Sealed Responses. Sealed Responses will be considered irregular and may

INSTRUCTIONS TO FIRMS

REQUEST FOR QUALIFICATIONS # 100-21

be rejected if they show serious omissions, alterations in form, additions not called for, conditions or unauthorized alterations, or irregularities of any kind.

2. City reserves the right to reject the Sealed Response of any Firm if City believes that it would not be in its best interest of to make an award to that Firm, whether because the Sealed Response is not responsive, the Firm is unqualified, of doubtful financial ability, or fails to meet any other pertinent criteria established by City within the Scope of Services.

INSURANCE REQUIREMENTS

1. All Insurance requirements are described in a separate document included with this solicitation (if applicable).

INDEMNITY

1. The Firm shall indemnify and hold harmless the CITY, its elected officials, officers and employees, from all liabilities, damages, losses and costs (including, but not limited to, reasonable attorneys' fees and court costs, whether such fees and costs are incurred in negotiations, at the trial level or on appeal, or in the collection of attorneys' fees), to the extent caused by the negligence, recklessness, or intentionally wrongful conduct of the Firm's officers, employees, agents, and other persons employed or utilized by the Proposer in the performance of, or the failure to perform, the Agreement.
2. In the event of a claim, the CITY shall promptly notify the Firm in writing by prepaid certified mail (return receipt requested) or by delivery through any nationally recognized courier service (such as Federal Express or UPS) which provides evidence of delivery, at the address provided for receipt of Notice in the Agreement.
3. The CITY shall provide all available information and assistance that the Firm may reasonably require regarding any claim. This agreement for indemnification shall survive termination or completion of the Agreement.
4. Nothing in this Agreement shall be deemed to affect the rights, privileges and immunities of the CITY as set forth in Florida Statute § 768.28.

EQUAL EMPLOYMENT OPPORTUNITY CLAUSE

1. City of Plantation, Florida, in accordance with the provisions of Title VII of the Civil Rights Act of 1964 (78 Stat. 252) and the Regulations of the Department of Commerce (15 CFR, Part 8) issued pursuant to such Act, hereby notifies all FIRMS that it will ensure that in any agreement entered into pursuant to this advertisement, minority business enterprises will be afforded full opportunity to submit proposals in response to this advertisement and will not be discriminated against on the ground of race, color or national origin in consideration for an award.

INSTRUCTIONS TO FIRMS

REQUEST FOR QUALIFICATIONS # 100-21

REGULATIONS

1. Violation of any local, state or federal law in the performance of this Agreement shall constitute a material breach of this Agreement.

TAXES

1. Firm shall pay all applicable sales, consumer use and other similar taxes required by law.

PERMITS, FEES AND NOTICES

1. The Firm shall be responsible for securing all permits and licenses necessary for the proper execution and completion of the work, if applicable.

CONE OF SILENCE

1. Once the RFQ has been issued, a Cone of Silence will be implemented. At that time communication with the City is limited to George Barber, Procurement Administrator (email address gbarber@plantation.org). During the review and evaluation process no person shall make any private or separate delivery of marketing information concerning any Firm to any elected officers of the City, members of the City staff or members of the Evaluation/Selection Committee. Cone of Silence shall terminate at the time the CITY makes an award to a FIRM(S) that becomes final as a result of no procurement protest being filed or takes other action that ends this RFQ solicitation. Any action of a FIRM in violation of this may be cause for disqualification of the FIRM.

END OF SECTION

SCOPE OF SERVICES

City of Plantation

Overview

The City is seeking proposals from qualified firms to provide an Automatic License Plate Recognition (ALPR) System. The Automatic License Plate Recognition (ALPR) System is proposed to provide enhanced security for the residents by continuously monitoring the vehicles entering, leaving, and traversing the City. The distributed (ALPR) Systems shall be linked to a central management server that will function as a primary interface point. The server will have the ability to “process information” which will allow the City to monitor activity and perform investigations; improving the overall safety of the City. The (ALPR) Systems must be fixed and able to read rear-view license plates. The City intends to monitor vehicular ingress and egress through (ALPR) Systems at designated locations. The City seeks an (ALPR) System that can interface with multiple platforms and vendors.

Minimum Specifications:

The Automatic License Plate Recognition (ALPR) System shall be capable of the following functions:

- Possess the ability to read license plates from all cameras simultaneously.
- Accurately read license plates from a mounted position of 36-plus feet off the center line of the target lane with an overall read angle in range excess of 65 feet.
- Possess the ability to process and/or match the captures license plate numbers against a variety of target databases containing vehicles of interest (i.e. stolen, wanted, amber alerts, terrorists, suspicious, sex offender, etc.).
- System shall provide the ability to both audibly and visibly alert a designated dispatch center and or designated officer(s) when a particular match or hit occurs.
- System shall provide the capability to network to the current patrol vehicles so that patrol vehicles shall be able to access the (ALPR) System via a web server.
- Web-based user interface that allows for plate monitoring, partial tag searches, retroactive plate searches, and hotlist management.
- Web interface should allow for map-based viewing of the System.
- Web-based System should be capable of supporting high definition IP surveillance cameras, along with the ALPR's, within the same interface.

Software Requirements:

The successful Proposer shall provide support, maintenance and troubleshooting service for the (ALPR) System for a period of five years from date of installation. The System shall be monitored by an automated system remotely 24 hours per day, 365 days per year. When an issue is identified, the successful Proposer will respond, or notify the City, based on protocols depending on the type of issue, within two (2) hours by phone. If the issue requires further troubleshooting, the successful Proposer shall be able to remotely troubleshoot problems with the system within four (4) hours of onset of the problem/issue and onsite, if needed, within forty-eight (48) hours of onset of the problem/issue.

Hotlists

The Proposer shall include an (ALPR) System capable of functioning and receiving information in the form of “Hotlists” from the below databases at minimum:

- Local
- State (Florida Crime Information Center)
- National (National Crime Information Center)

The (ALPR) System shall use advanced camera recognition and database technology to automatically capture images of vehicle license plate numbers and instantly check those numbers against a variety of vehicle “hot files” held in the system databases.

SCOPE OF SERVICES

Proposed Locations:

See attachment.

Maintenance Agreement

The proposed system shall include the cost for a five (5) year maintenance agreement on all hardware, software, and software upgrades.

Electrical Work

The Propser is responsible for all of the necessary electrical work required to fully install and maintain an operational License Plate Recognition System. All electrical work must meet the National Electrical Code- NEC 70 standards.

Certifications

The Proposer is responsible for maintaining the required requisite licenses to perform all the work mentioned herein.

Additional Services

Proposer will include and specify any additional costs needed to install, service, and implement the Automated License Plate Recognition Camera System.

Training

Training of City personnel in the utilization of the System is to be provided by the Proposer. The Proposal shall specify the minimum number of hours of training to be provided, the levels of training to be provided (i.e. administrative training for the system administrator, end-user training for the end users), the maximum number of individuals who will be trained, and whether web-based refresher training is available, and the cost of providing training after the initial training is completed.

Proposer Requirements:

The vendor must have a minimum of three years' successful experience in providing and operating such (ALPR) Systems to local government units, be licensed to operate in the State of Florida, and have appropriate credentials and licensing to work with the databases to be accessed by the System. The vendor must have successful implementations in the State of Florida, have technical support staff in Florida, and be able to provide a local response to System issues.

Clean-Up:

At the completion of all work, the Proposer shall remove from the area all trash, rubbish, and debris caused by its operations, leaving the job site clean.

Inspection of Work:

The services performed and the supplies furnished for this contract will be inspected during the course of work. Inspections shall be performed by a City Representative to determine that all work is being performed in a satisfactory manner, and that all supplies are of acceptable quality and standards.

The Proposer shall be responsible for any corrective action, within the scope of this contract, for deficiencies noted as a result of such inspection.

SCOPE OF SERVICES

Warranty/Guarantee:

All warranties by manufacturer shall apply. Proposer shall, as part of its proposal, furnish its warranty/guarantee for all goods/services to be furnished hereunder. As a minimum, Proposer shall warrant all goods for a period of five (5) years from the date of acceptance. Proposer shall be obligated to repair or replace all defects in material or workmanship which are discovered or exist during said period. All labor, parts and transportation shall be at Proposer's expense.

Contractor Personnel

Installation Technician Experience Requirements: The Proposer shall be responsible for providing qualified technicians for project relevant experience of more than 3 years to perform make-ready services. Helper positions do not need to meet this minimum 3-year requirement.

Qualified Proposer:

Each Proposer must be prepared to present satisfactory proof of their capacity and ability to perform this contract. Such proof may include, but is not limited to, an inspection of the Proposer's facilities and equipment, financial statements, referenced and performance of similar contracts. The City reserved the right to reject any bid where the Proposer cannot satisfy the City as to their ability to perform. The City reserves the right to reject any and all bids if the City deems said action to be in the best interests of the City of Plantation.

Working Hours:

All work shall be performed during normal working hours (from 0800 through 1630), Mondays through Friday.

Language Proficiency

The manager assigned by the contractor to superintend the work on-site shall be fluent in written and spoken English.

Laws and Regulations:

The Proposer shall, without additional expense to the owner or City of Plantation, be responsible for complying with all laws codes, ordinances, and regulations applicable to the performance of work.

Permits and Fees

The Proposer shall be responsible for all permits and fees required to fully complete the work specified herein.

Attachment “A”

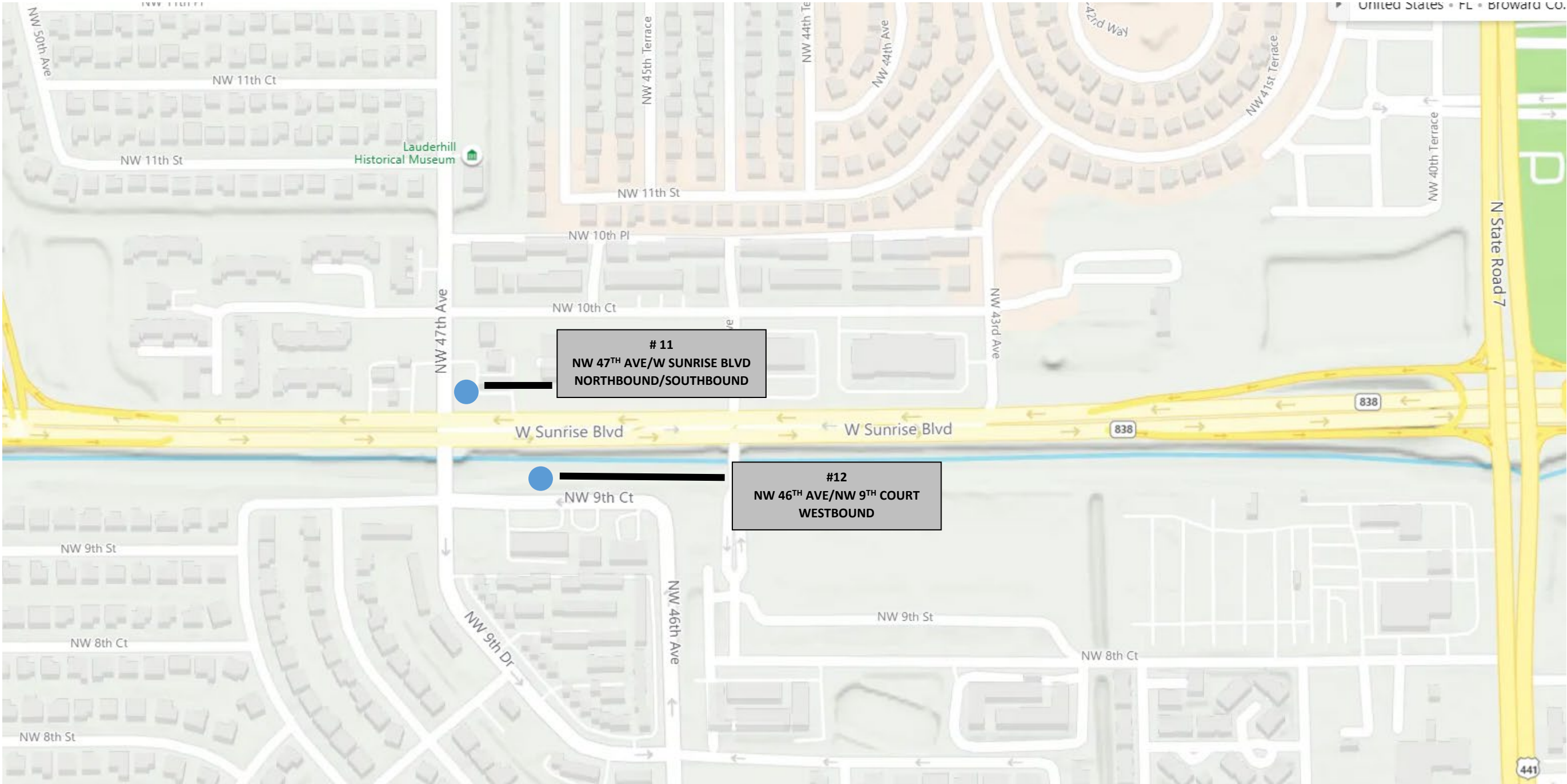
(Proposed Locations)

LPR CAMERA LOCATIONS

	INTERSECTION	DIRECTION
1	N STATE ROAD 7 / W SUNRISE BLVD	SOUTHBOUND
2	N STATE ROAD 7 / W SUNRISE BLVD	NORTHBOUND
3	N STATE ROAD 7 / W BROWARD BLVD	NORTHBOUND
4	N STATE ROAD 7 / W BROWARD BLVD	WESTBOUND
5	S STATE ROAD 7 / W BROWARD BLVD	SOUTHBOUND
6	3800BLK W BROWARD BLVD	WESTBOUND
7	3800BLK W BROWARD BLVD	EASTBOUND
8	S STATE ROAD 7 / PETERS ROAD	SOUTHBOUND
9	S STATE ROAD 7 / PETERS ROAD	NORTHBOUND
10	S STATE ROAD 7 / PETERS ROAD	WESTBOUND
11	NW 47 TH AVE / W SUNRISE BLVD	NORTHBOUND / SOUTHBOUND
12	NW 46 TH AVE / NW 9 TH COURT	WESTBOUND
13	N STATE ROAD 7 / W SUNRISE BLVD	WESTBOUND / EASTBOUND
14	N STATE ROAD 7 / NW 5 TH STREET	WESTBOUND
15	N STATE ROAD 7 / S HOSPITAL DRIVE	WESTBOUND / EASTBOUND
16	FRONTAGE / SW 6 TH STREET	WESTBOUND / EASTBOUND
17	FRONTAGE / SW 8 TH STREET	WESTBOUND / EASTBOUND / SOUTHBOUND
18	FRONTAGE / SW 10 TH STREET	WESTBOUND / EASTBOUND
19	1200BLK S STATE ROAD 7 (FRONTAGE RD)	NORTHBOUND
20	S STATE ROAD 7 / DAVIE BLVD	WESTBOUND

NOTE: SITES # 1-10, 14, 17, 19, & 20 ARE SITES WITH PRE-EXISTING POLES OWNED BY THE CITY WITH POWER.
SITES # 11-13, 15, 16, & 18 ARE SITES WHERE THE VENDOR WOULD NEED TO INSTALL POLES FOR THE LPR CAMERAS.

W SUNRISE BLVD



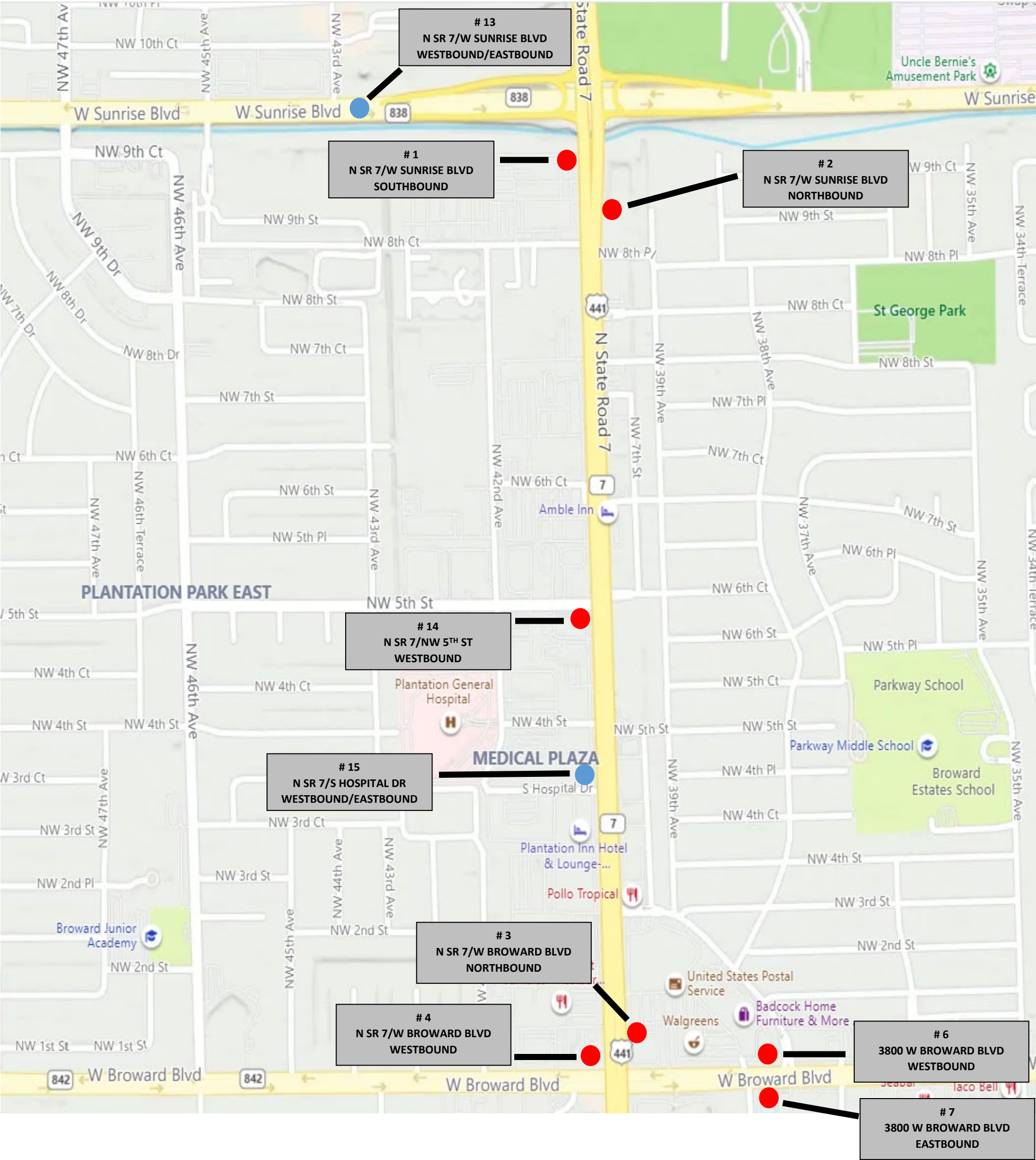
- = EXISTING CITY OF PLANTATION POLE
- = POLE NEEDED

SOUTH STATE ROAD 7



● = EXISTING CITY OF PLANTATION POLE
● = POLE NEEDED

NORTH STATE ROAD 7



● = EXISTING CITY OF PLANTATION POLE
● = POLE NEEDED

Selection Process and Evaluation Criteria

A. The City will conduct a qualification-based selection process for the selection of FIRMS for Plantation Automated License Plate Recognition System (ALPR).

B. The criteria the City shall consider in short listing and ranking FIRMS shall include the following factors when completing the FIRMS Qualifications Evaluation Form:

- | | |
|---|------------------|
| 1. FIRM Qualifications | 20 Points |
| Qualifications of FIRM and Key Staff | |
| <ul style="list-style-type: none">- Stability of key Staff- Office in reasonable proximity to City of Plantation | |
| 2. Project Experiences | 30 Points |
| <ul style="list-style-type: none">- Customer Satisfaction References- Previous experience with governmental agencies | |
| 3. Technical Capabilities and Project Approach | 45 Points |
| <ul style="list-style-type: none">- System Functionality- System Implementation Approach- System Warranty and Maintenance- System Integration and Information Sharing- Employee Training on System- System Troubleshooting | |
| 4. CBE and/or DBE Representation | 5 Points |
| <ul style="list-style-type: none">- FIRM is a County Certified Small Business- FIRM is Certified Disadvantaged Business Enterprise | |

MAXIMUM TECHNICAL POINTS:	100 Points
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The weighted criteria provided above, is provided to assist the FIRM in the allocation of their time and efforts during the submission process. This weighted criterion is the framework for evaluation used by the Evaluation/Selection Committee during the short-list and final ranking process. The Committee shall be the sole judge as to the number of FIRMS ultimately recommended for award.

- C. The Mayor of the City of Plantation or designee shall establish an Evaluation/Selection Committee of a minimum of (3) three Staff Members to review Qualification Packages and/or participate in the presentation process.
- D. The Evaluation/Selection Committee shall conduct a subjective evaluation of FIRMS. The Committee shall be the sole judge as to the number of FIRMS ultimately recommended for award.
- E. The short-listed and ranked FIRMS and Qualification Packages (Proposals) shall then be presented and considered by the City governing body at a public meeting. Once ranking(s) are approved by the City governing body, the City will then undertake to negotiate an Agreement with the highest ranked FIRM approved by the City's governing body.
- F. Should the City be unable to negotiate a satisfactory Agreement with the Top ranked FIRM, negotiations with that FIRM shall be formally terminated and the City may proceed to negotiate an Agreement with the next highest ranked FIRM, and so on. Should the City be unable to negotiate a satisfactory Agreement with any of the ranked FIRM(s), the City may then abandon this procurement process or select additional FIRM(s) in order of their competence and qualifications and continue

Selection Process and Evaluation Criteria

negotiations in accordance with this process until additional FIRM(s) have been subjected to competitive negotiations. The method by which the City formally terminates negotiations shall be a letter signed by the Mayor indicating that negotiations have terminated.

The City shall not be contractually or otherwise bound to any FIRM until an Agreement in writing has been approved by the City Administration and signed by the appropriate City officers.

Mandatory Pre-Bid Meeting

The City shall conduct a mandatory pre-bid meeting to discuss the scope of services and proposal evaluation method and criteria. All Firms submitting a proposal must be in attendance.

END OF SECTION

QUALIFICATION STATEMENT

Fill in Form

The undersigned certifies under oath the truth and correctness of all statements and of all answers to questions made hereinafter (Attach additional sheets with appropriate reference, if necessary). You must respond to all questions. **FAILURE TO DISCLOSE OR PROVIDE THE REQUESTED INFORMATION BELOW MAY RESULT IN THE FIRM'S PROPOSAL BEING DEEMED NON-RESPONSIVE AND THE FIRM AS NOT QUALIFIED FOR AWARD.**

SUBMITTED TO: City of Plantation

ADDRESS: 400 NW 73rd Avenue
Plantation, FL 33317

SUBMITTED BY: _____

NAME: _____

ADDRESS: _____

TELEPHONE NO.: _____

FAX NO.: _____

EMAIL ADDRESS: _____

1. State the true, exact, correct and complete name of the partnership, corporation, trade or fictitious name under which you do business and the address of the place of business.

The correct name of the FIRM is: _____

The address of the principal place of business is: _____

The business is a (Sole Proprietorship) _____ (Partnership) _____ (Corporation) _____

2. If FIRM is a corporation, answer the following:

- a. Date of Incorporation: _____
- b. State of Incorporation: _____
- c. President's Name: _____
- d. Vice President's Name: _____
- e. Secretary's Name: _____
- f. Treasurer's Name: _____
- g. Name and address of Resident Agent: _____

3. If FIRM is an individual or a partnership, answer the following:

- a. Date of organization: _____
- b. Name, address and ownership units of all partners: _____
- c. State whether general or limited partnership: _____

QUALIFICATION STATEMENT

Fill in Form

4. If FIRM is other than an individual, corporation or partnership, describe the organization and give the name and address of principals:

5. If FIRM is operating under a fictitious name, submit evidence of compliance with the Florida Fictitious Name Statute.
6. How many years has your organization been in business under its present business name: _____
 - a. Under what other former names has your organization operated?

7. Indicate registration, license numbers or certificate numbers for the business or professions that are the subject of this Proposal. Please attached certificate of competency and/or state registration. Please include the foregoing information for all parties to be assigned to the project.

8. Have you ever failed to complete any work awarded to you? If so, state when, where and why?

9. Within the five (5) years, has any officer or partner of your organization ever been an officer or partner of another organization when it failed to complete a contract? If so, explain fully.

10. State the names, telephone numbers and last known addresses of three (3) owners, individuals or representatives of owners with the most knowledge of work which you have performed or goods you have provided, and to which you refer (government owners are preferred as references).

11. List the pertinent experience of the key individuals of your organization (continue on insert sheet, if necessary).

12. Provide a list of similar projects, which have been completed within the past five (5) years, including project description, owner's names, addresses and phone numbers.

13. Provide a list of work currently under contract.

14. On Exhibit A, list all disputes, claims, mediations and litigation in which the bidding entity, a parent entity, an affiliate entity, a predecessor entity or other entities with which you were then

QUALIFICATION STATEMENT

Fill in Form

associated or affiliated were involved in any contract disputes over the last five (5) years as of the solicitation response due date. If FIRM is a joint venture, the information provided should encompass the joint venture and each of the entities forming the joint venture. For said claim, identify with particularity the nature of such dispute, the names and addresses of the other parties to such disputes, and whether or how such disputes were resolved, including any mediation, arbitration or litigation involved and dollar awards. [Do not include disputes, claims, mediations and litigation that involve only garnishment, auto negligence, personal injury, or a proof of claim filed by FIRM]

15. List all disputes, claims, mediations and litigation between the Owner and any of the responding entity's subcontractors/subconsultants over the last five (5) years as of the solicitation response due date.
-

16. Has any governmental entity within the last five (5) years commenced proceedings to discipline any of the officers, partners, or principals of the FIRM, or sought to revoke a license held by the FIRM (or its qualifying agent)? If so, please describe in detail the proceedings and how the matter was resolved.
-

17. Will you sublet any part of this work? If so, give details. (sub-contractor's name, address, phone number and contact)
-

QUALIFICATION STATEMENT

Fill in Form

NOTARY BLOCK FOR AN INDIVIDUAL

STATE OF _____

COUNTY OF _____

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this _____ (date) by _____ (name of personal acknowledging), who is personally known to me or who has produced _____ (type of identification) as identification.

My commission expires:

NOTARY PUBLIC

NOTARY BLOCK FOR A CORPORATION

STATE OF _____

COUNTY OF _____

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this _____ (date) by _____ (name of officer or agent, title of officer or agent), of _____ (name of corporation acknowledging), a _____ (state or place of incorporation) corporation, on behalf of the corporation. He/she is personally known to me or who has produced _____ (type of identification) as identification.

My commission expires:

NOTARY PUBLIC

QUALIFICATION STATEMENT

Fill in Form

NOTARY BLOCK FOR A LIMITED LIABILITY COMPANY:

STATE OF _____

COUNTY OF _____

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this _____ (date) by _____ (name of member, manager, officer, or agent, title of member, manager, officer or agent), of _____ (name of company acknowledging), a _____ (state or place of formation) limited liability company, on behalf of the company, who is personally known to me or who has produced _____ (type of identification) as identification.

My commission expires:

NOTARY PUBLIC

REFERENCES

Please provide the names of three (3) **Governmental Agency** contract references. The references must be current or former clients with a similar engagement within the past 5 years.

NAME:	POSITION:
ENTITY:	
PHONE:	E -MAIL ADDRESS:
ADDRESS:	
PROJECT:	
COMPLETION DATE/STATUS:	

NAME:	POSITION:
ENTITY:	
PHONE:	E -MAIL ADDRESS:
ADDRESS:	
PROJECT:	
COMPLETION DATE/STATUS:	

NAME:	POSITION:
ENTITY:	
PHONE:	E -MAIL ADDRESS:
ADDRESS:	
PROJECT:	
COMPLETION DATE/STATUS:	

INSURANCE REQUIREMENTS

Statement

Contractors shall not commence any work until they have obtained and satisfied the city's insurance requirements under written contract with the city and such insurance has been approved by the City of Plantation Risk Management Department. Contractors shall not allow any subcontractor to commence work until all insurance requirements have been so obtained and approved. All insurance policies shall be with insurers qualified and doing business in the State of Florida. All insurance companies shall have a Financial Rating of no less than "A-" and Class X respectively, in the latest edition of A.M. Best Rating Guide. The types and amounts of insurance shall not be less than the amounts specified in this agreement.

Insurance

The required insurance coverage's shall be written in accordance with the hazards and magnitude of the project, but in no circumstances a lesser coverage amount, nor more restrictive than the limits of liability and schedule of hazards described herein.

Contractors shall be responsible to purchase and maintain required insurance policies during the term of the contract agreement. If the Contractor fails to procure and maintain such insurance, the City of Plantation shall have the right, but not the obligation, to purchase and maintain said insurance for and in the name of the Contractor, and the Contractor will pay the premium cost thereof and shall furnish all necessary information to the city in order to make effective and maintain such insurance.

Additional Insured

Certificates of Insurance and insurance policies shall also be endorsed to name the City of Plantation "Additional Insured" on the Commercial General Liability with the following or similar endorsements providing equal or broader Additional Insured coverage, such as the basic CG2026 07 04 Additional Insured--Designated Person or Organization endorsement, or the CG2010 10 01 Additional Insured-Owners Lessees, or Contractors endorsement, or the CG2010 07 04 Owners, Lessees or Contractors endorsement, including the additional endorsement of CG2037 10 01-Additional Insured- Owners, Leases have Contractors Operations endorsement. Endorsements shall be required to provide back coverage for the contractors "Your Work" as defined in the insurance policy and liability arising out of the products & completed operations hazard.

Commercial General Liability

Contractor will agree to maintain Commercial General Liability at a minimum limit of liability not less than **\$1,000,000** Each Occurrence, and **\$2,000,000** Annual Aggregate unless the particular contract calls for specific limits of insurance. Coverage shall not contain any endorsement(s) excluding nor limiting Product/Completed Operations, Contractual Liability or Cross Liability. When a self-insured retention (SIR) or deductible exceeds **\$25,000**, the City reserves the right, but not the obligation, to review and request a copy of Contractor's most recent annual report or audited financial statement.

Business Automobile Liability

Contractor will agree to maintain Business Automobile Liability at a limit of liability not less than **\$1,000,000** Each Occurrence. Coverage shall include liability for Owned, Non-Owned & Hired automobiles. In the event Contractor does not own automobiles, Contractor agrees to maintain coverage for Hired & Non-Owned Auto Liability, which may be satisfied by way of endorsement to the Commercial General Liability policy or separate Business Auto Liability policy.

Workers Compensation & Employers Liability

The Workers Compensation and Employers' Liability insurance shall be in accordance with Florida State Statutes 440.

INSURANCE REQUIREMENTS

Umbrella Excess Liability

If required by contract will be no more restricted than the underlying insurance policies.
City of Plantation must be added and endorsed separately as additional insured on umbrella policies.

Professional Liability

If required by contract will be a minimum of 1,000,000.

Waiver of Subrogation

The Contractor will agree that each required policy will contain Waivers of Subrogation in favor the City of Plantation. Should an insurance policy condition **not** permit Contractor to enter into a pre-loss agreement to waive subrogation without an endorsement, then the Contractor will agree to notify the insurer and request the policy be endorsed with a waiver of Transfer of Rights of Recovery against others, or its equivalent. This waiver of subrogation shall not apply to any policy, which includes a condition specifically prohibiting such an endorsement, or voids coverage should contractor enter into such an agreement on a pre-loss basis.

Certificate(s) of Insurance

The Contractor will agree to provide City a Certificate of Insurance evidencing that all coverage's, limits and endorsements required herein are maintained and in full force and effect, and certificates of insurance shall provide a minimum thirty (30) days to notify, when available by Contractors insurer. If the Contractor receives a non-renewal or cancellation notice from an insurance carrier affording coverage required herein, or receives notice that coverage no longer complies with the insurance requirements herein, Contractor agrees to notify the City by fax within five (5) business days with a copy of the non-renewal or cancellation notice, or written specifics as to which coverage is no longer in compliance. Certificates of Insurance shall be in the form as approved by Insurance Standards Office (ISO) and such certificates shall clearly state all of the coverage's required in this section.

INSURANCE

Commercial General Liability insurance will cover liability bodily injury and property damage. Exposures to be covered are premises, operations, products/completed operations, and contracts. Coverage must be written on an occurrence basis, with the following **examples** of insurance.

Schedule

Limits

Commercial General Liability	\$1,000,000 Each Occurrence
Blanket Contractual Liability	\$2,000,000 Each Occurrence
Independent Contractors	Premises-Operations
Products & Completed Operations	Personal /Advertising Injury
Blanket Contractual Liability	Independent Contractors
Automobile Liability	
Any auto including Hired & Non-owned	\$1,000,000 Combined Single Limit
Broad Form Property Damage	\$1,000,000 Each Occurrence
Blanket X,C,U Hazards	If required (Included)
Workers' Compensation	Florida 440 Statutory Coverage
Employers Liability	\$1,000,000 Each Accident
Disease Policy Limit	\$1,000,000

INSURANCE REQUIREMENTS

Bonds:

A surety bond maybe required equal to the value of the job to guarantee the work will be done per the specifications on a timely basis.

Insurance Summary:

- A. Violation of the terms of this agreement and its subparts shall constitute a breach of the written contract and so the city at its sole discretion, may cancel the contract and all rights, title and interest of the contractor shall thereupon cease and terminate.
- B. The City reserves the right to require or adjust any of the insurance coverage's it deems necessary depending upon the company, the project and the potential hazard exposures.
- C. The city requires being named "**Additional Insured**" on all certificates of insurance. Certificates of Insurance can only be endorsed by an insurance agency or insurance company.
- D. No work is to be performed pursuant to a mutually agreed upon written contract between the City of Plantation and the Contractor. The city will have the right to amend such contract to conform to City of Plantation guidelines for contract work.
- E. The City requires a “thirty (30) day notice of cancellation” on all certificates of insurance.
- F. The City requires a “wavier of subrogation” for all Workers Compensation Coverages

THE UNDERSIGNED CONTRACTOR HAS READ ALL THE FOREGOING REQUIREMENTS AND AGREES TO THE TERMS.

WITNESS

CONTRACTOR

DATE

CITY OF PLANTATION

INSURANCE REQUIREMENTS

SAMPLE

DATE (MM/DD/YYYY)

12/12/2018

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER		CONTACT NAME: Agent Name	
American Underwriters Miami, FL 33166		(A/C, No, Ext):	FAX (A/C, No):
		Agent CONTACT INFORMATION	
		NAIC #	
INSURED Any-Business		INSURER A:	
1101 Easy St		INSURER B:	
MIAMI, FL 33131		INSURER C:	
		INSURER D:	
		INSURER E:	

CERTIFICATE NUMBER:

REVISION

NUMBER:

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	ADDL INSD	SUBR WVD	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS														
A	☒ COMMERCIAL GENERAL LIABILITY	☒	☒				<table border="1"> <tr> <td>EACH OCCURRENCE</td> <td>\$ 1,000,000</td> </tr> <tr> <td>DAMAGE TO RENTED PREMISES (Ea occurrence)</td> <td>\$ 100,000</td> </tr> <tr> <td>MED EXP (Any one person)</td> <td>\$ 5,000</td> </tr> <tr> <td>PERSONAL & ADV INJURY</td> <td>\$ 1,000,000</td> </tr> <tr> <td>GENERAL AGGREGATE</td> <td>\$ 2,000,000</td> </tr> <tr> <td>PRODUCTS - COMP/OP AGG</td> <td>\$ 1,000,000</td> </tr> <tr> <td></td> <td>\$</td> </tr> </table>	EACH OCCURRENCE	\$ 1,000,000	DAMAGE TO RENTED PREMISES (Ea occurrence)	\$ 100,000	MED EXP (Any one person)	\$ 5,000	PERSONAL & ADV INJURY	\$ 1,000,000	GENERAL AGGREGATE	\$ 2,000,000	PRODUCTS - COMP/OP AGG	\$ 1,000,000		\$
EACH OCCURRENCE	\$ 1,000,000																				
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GENERAL AGGREGATE	\$ 2,000,000																				
PRODUCTS - COMP/OP AGG	\$ 1,000,000																				
	\$																				
	CLAIMS-MADE Per - OCCUR ☒																				
	GEN'L AGGREGATE LIMIT APPLIES PER:																				
	POLICY PRO-JECT LO																				
	OTHER:																				
	AUTOMOBILE LIABILITY		☒				<table border="1"> <tr> <td>COMBINED SINGLE LIMIT (Ea accident)</td> <td>\$ 1,000,000</td> </tr> <tr> <td>BODILY INJURY (Per person)</td> <td>\$ INCLUDED</td> </tr> <tr> <td>BODILY INJURY (Per accident)</td> <td>\$ INCLUDED</td> </tr> <tr> <td>PROPERTY DAMAGE (Per accident)</td> <td>\$ INCLUDED</td> </tr> <tr> <td></td> <td>\$</td> </tr> </table>	COMBINED SINGLE LIMIT (Ea accident)	\$ 1,000,000	BODILY INJURY (Per person)	\$ INCLUDED	BODILY INJURY (Per accident)	\$ INCLUDED	PROPERTY DAMAGE (Per accident)	\$ INCLUDED		\$				
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PROPERTY DAMAGE (Per accident)	\$ INCLUDED																				
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	ANY AUTO																				
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	HIRED AUTOS																				
	SCHEDULED AUTOS NON-OWNED AUTOS																				
	UMBRELLA LIAB	☒	☒				EACH OCCURRENCE \$														
	EXCESS LIAB	☒	☒				AGGREGATE \$														
	DED RETENTION \$						\$														
C	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY		☒				<table border="1"> <tr> <td>☒ PER STATUTE</td> <td></td> </tr> <tr> <td>☐ OTHER</td> <td></td> </tr> <tr> <td>E.L. EACH ACCIDENT</td> <td>\$ 1,000,000</td> </tr> <tr> <td>E.L. DISEASE - EAEMPLOYEE</td> <td>\$ 1,000,000</td> </tr> <tr> <td>E.L. DISEASE - POLICY LIMIT</td> <td>\$ 1,000,000</td> </tr> </table>	☒ PER STATUTE		☐ OTHER		E.L. EACH ACCIDENT	\$ 1,000,000	E.L. DISEASE - EAEMPLOYEE	\$ 1,000,000	E.L. DISEASE - POLICY LIMIT	\$ 1,000,000				
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E.L. DISEASE - EAEMPLOYEE	\$ 1,000,000																				
E.L. DISEASE - POLICY LIMIT	\$ 1,000,000																				
	ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/ MEMBER EXCLUDED?	N/A																			
	(Mandatory in NH) If yes, describe under DESCRIPTION OF OPERATIONS below																				

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (ACORD 101, Additional Remarks Schedule, may be attached if more space is required)

THE CITY OF PLANTATION SHALL BE LISTED AS CERTIFICATE HOLDER AND ENDORSED AS AN ADDITIONAL INSURED FOR LIABILITY. POLICIES SHALL BE ENDORSED TO PROVIDE 30 DAYS WRITTEN NOTICE CANCELLATION TO CERTIFICATE HOLDER.

10 DAYS NOTICE OF CANCELLATION FOR NON-PAYMENT. CONTRACTORS INSURANCE SHALL PROVIDE PRIMARY COVERAGE AND SHALL NOT REQUIRE CONTRIBUTION FROM CERTIFICATE HOLDER. *CONTRACTOR IS RESPONSIBLE FOR ALL DEDUCTIBLES. *FOR WORKERS COMP- WAIVER OF SUBROGATION

CERTIFICATE HOLDER

City OF Plantation 400 NW 73rd AVENUE PLANTATION, FL 33317	SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS AUTHORIZED REPRESENTATIVE - REQUIRED SIGNATURE
--	--

STATEMENT UNDER SECTION 287.087
FLORIDA STATUTES

TO BE RETURNED WITH FIRM

Preference must be given to FIRMS submitting certification with their bid or proposal, certifying they have a drug-free workplace in accordance with the Florida Statutes, Section 287.087. This requirement affects all public entities of the State and became effective January 1, 1991.

Preference shall be given to businesses with drug-free workplace programs. Whenever two or more bids, proposals, or replies that are equal with respect to price, quality and service are received by the State or by any political subdivision for the procurement of commodities or contractual services, a bid, proposal, or reply received from a business that certifies that it has implemented a drug-free workplace program shall be given preference in the award process. Established procedures for processing the bids will be followed if none of the tied vendors have a drug-free workplace program. In order to have a drug-free workplace program, a business shall:

1. Publish a statement notifying employees that the unlawful manufacture, distribution, dispensing, possession, or use of a controlled substance is prohibited in the workplace and specifying the action that will be taken against employees for violations of such prohibition.
2. Inform employees about the dangers of drug abuse in the workplace, the business's policy of maintaining a drug-free workplace, any available drug counseling, rehabilitation and employee assistance programs, and the penalties that may be imposed upon employees for drug abuse violations.
3. Give each employee engaged in providing the commodities or contractual services that are under bid a copy of the statement specified in subsection (1).
4. In the statement specified in subsection (1), notify the employees that as a condition of working on the commodities or contractual services that are under bid, the employee will abide by the terms of the statement and will notify the employer of any convictions of, or plea of guilty or nolo contendere to, any violations of Chapter 893 or of any controlled substance law of the United States or any state, for a violation occurring in the workplace, no later than five (5) days after such conviction.
5. Impose a sanction on, or require the satisfactory participation in, a drug abuse assistance or rehabilitation program if such is available in the employee's community, by an employee who is so convicted.
6. Make a good faith effort to continue to maintain a drug-free workplace through implementation of the above measures.

As the person authorized to sign this statement, I certify that this company complies with the above requirements.

Signature

Printed Name

Firm Name

Date

SWORN STATEMENT UNDER SECTION 287.133(3)(a)
FLORIDA STATUTES

TO BE RETURNED WITH PROPOSAL

THIS MUST BE SIGNED IN THE PRESENCE OF A NOTARY PUBLIC OR OTHER OFFICER
AUTHORIZED TO ADMINISTER OATHS

1. This sworn statement is submitted with Bid, Proposal or Contract for _____
2. This sworn statement is submitted by _____ (entity submitting sworn statement), whose business address is _____ and its Federal Employer Identification Number (FEIN) is _____. (If the entity has no FEIN, include the Social Security Number of the Individual signing this sworn statement: _____).
3. My name is _____ (please print name of individual signing), and my relationship to the entity named above is _____.
4. I understand that a “public entity crime” as defined in Paragraph 287.133(1)(g), Florida Statutes, means a violation of any state or federal law by a person with respect to and directly related to the transaction of business with any public entity or with an agency or political subdivision of any other state or with the United States, including, but not limited to, any bid or contract for goods or services, any leases for real property, or any contract for the construction or repair of a public building or public work, to be provided to any public entity or an agency or political subdivision of any other state or of the United States and involving antitrust, fraud, theft, bribery, collusion, racketeering, conspiracy, or material misrepresentation.
5. I understand that “convicted” or “conviction” as defined in Paragraph 287.133(1)(b), Florida Statutes, means a finding of guilt or a conviction or a public entity crime, with or without an adjudication of guilt, in any federal or state trial court or record relating to charges brought by indictment or information after July 1, 1989, as a result of a jury verdict, non-jury trial, or entry of a plea of guilty or nolo contendere.
6. I understand that an “affiliate” as defined in Paragraph 287.133(1)(a), Florida Statutes, means:
 - a) A predecessor or successor of a person convicted of a public entity crime; or
 - b) An entity under the control of any natural person who is active in the management of the entity and who has been convicted of a public entity crime. The term “affiliate” includes those officers, directors, executives, partners, shareholders, employees, members, and agents who are active in the management of an affiliate. The ownership by one person of shares constituting a controlling interest in another person, or a pooling of equipment or income among persons when not for fair market value under an arm’s length agreement, shall be prima facie case that one person controls another person. A person who knowingly enters into a joint venture with a person who has been convicted of a public entity crime in Florida during the preceding thirty-six (36) months shall be considered an affiliate.
7. I understand that a “person” as defined in Paragraph 287.133(1)(e), Florida Statutes, means any natural person or entity organized under the laws of any state or of the United States with the legal power to enter into binding contract and which bids or applies to bid on contracts let by a public entity, or which otherwise transacts or applies to transact business with a public entity. The term “person” includes those officers, directors, executives, partners, shareholders, employees, members, and agents who are active in management of an entity.

PUBLIC ENTITY CRIMES

Fill in Form

8. Based on information and belief, the statement, which I have marked below, is true in relation to the entity submitting this sworn statement. (Please indicate which statement applies.)

_____ Neither the entity submitting this sworn statement, nor any of its officers, directors, executives, partners, shareholders, employees, members, or agents who are active in management of the entity, nor any affiliate of the entity have been charged with and convicted of a public entity crime subsequent to July 1, 1989.

_____ The entity submitting this sworn statement, or one or more of the officers, directors, executives, partners, shareholders, employees, members, or agents who are active in management of the entity, or an affiliate of the entity has been charged with and convicted of a public entity crime subsequent to July 1, 1989, and (Please indicate which additional statement applies.)

_____ There has been a proceeding concerning the conviction before a hearing officer of the State of Florida, Division of Administrative Hearings. The final order entered by the Hearing Officer did not place the person or affiliate on the convicted vendor list. (Please attach a copy of the final order.)

_____ The person or affiliate was placed on the convicted vendor list. There has been a subsequent proceeding before a hearing officer of the State of Florida, Division of Administrative Hearings. The final order entered by the hearing officer determined that it was in the public interest to remove the person or affiliate from the convicted vendor list. (Please attach a copy of the final order.)

_____ The person or affiliate has not been placed on the convicted vendor list. (Please describe any action taken by or pending with the Department of General Services.)

(Signature)

(Date)

NOTARY BLOCK FOR AN INDIVIDUAL

STATE OF _____

COUNTY OF _____

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this _____ (date) by _____ (name of personal acknowledging), who is personally known to me or who has produced _____ (type of identification) as identification.

My commission expires:

NOTARY PUBLIC

NOTARY BLOCK FOR A CORPORATION

STATE OF _____

COUNTY OF _____

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this _____ (date) by _____ (name of officer or agent, title of officer or agent), of _____ (name of corporation acknowledging), a _____ (state or place of incorporation) corporation, on behalf of the corporation. He/she is personally known to me or who has produced _____ (type of identification) as identification.

My commission expires: _____

NOTARY PUBLIC

NOTARY BLOCK FOR A LIMITED LIABILITY COMPANY:

STATE OF _____

COUNTY OF _____

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this _____ (date) by _____ (name of member, manager, officer, or agent, title of member, manager, officer or agent), of _____ (name of company acknowledging), a _____ (state or place of formation) limited liability company, on behalf of the company, who is personally known to me or who has produced _____ (type of identification) as identification.

My commission expires: _____

NOTARY PUBLIC

NON-COLLUSION CERTIFICATION

Fill in Form

TO BE RETURNED WITH PROPOSAL

By signing and submitting this proposal, the FIRM certifies that this proposal is made independently and free from collusion.

FIRM shall disclose below, to their best knowledge, any City of Plantation officer or employee, or any relative of any such officer or employee as defined in Section 112.3135(1) (c), Florida Statutes (2014), who is an officer or director or, or has a material interest in, the FIRM's business, who is in a position to influence this procurement. Any City of Plantation officer or employee who has any input into the writing of specifications or requirements, solicitation of offers, decision to award, evaluation of offers, or any other activity pertinent to this procurement is presumed, for purposes hereof, to be in a position to indirectly own any of the total assets or capital stock of any business entity owned or operated by the FIRM, or if they otherwise stand to personally gain if the contract is awarded to this FIRM.

Failure to submit this executed statement as part of the proposal shall make the proposal nonresponsive and not eligible for award consideration. In the event the FIRM does not indicate any names, the CITY shall interpret this to mean that the FIRM has indicated that no such relationships exist. Failure of a FIRM to disclose any relationship described herein shall be reason for termination of proposal or award, whichever is applicable, with no time to cure.

NAME

RELATIONSHIP

WITNESSES:

Typed Name:

Typed Name:

FIRM:

By: _____

Name: _____

Title: _____

NON-COLLUSION CERTIFICATION

Fill in Form

NOTARY BLOCK FOR AN INDIVIDUAL

STATE OF _____

COUNTY OF _____

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this _____ (date) by _____ (name of personal acknowledging), who is personally known to me or who has produced _____ (type of identification) as identification.

My commission expires: _____

NOTARY PUBLIC

NOTARY BLOCK FOR A CORPORATION

STATE OF _____

COUNTY OF _____

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this _____ (date) by _____ (name of officer or agent, title of officer or agent), of _____ (name of corporation acknowledging), a _____ (state or place of incorporation) corporation, on behalf of the corporation. He/she is personally known to me or who has produced _____ (type of identification) as identification.

My commission expires: _____

NOTARY PUBLIC

NON-COLLUSION CERTIFICATION

Fill in Form

NOTARY BLOCK FOR A LIMITED LIABILITY COMPANY:

STATE OF _____

COUNTY OF _____

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this _____ (date) by _____ (name of member, manager, officer, or agent, title of member, manager, officer or agent), of _____ (name of company acknowledging), a _____ (state or place of formation) limited liability company, on behalf of the company, who is personally known to me or who has produced _____ (type of identification) as identification.

My commission expires:

NOTARY PUBLIC

FIRM'S CERTIFICATION

Fill in Form

TO BE RETURNED WITH BID

WHEN FIRM IS A PARTNERSHIP

IN WITNESS WHEREOF, the FIRM hereto has executed this Form this _____ day
of _____, 20____.

Witness

By:

Printed Name of Partnership

Signature of General or Managing Partner

Printed Name of Partner

Witness

Business Address

City/State/Zip

Business Phone Number

State of Registration

STATE OF _____

COUNTY OF _____

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this _____ (date) by _____ (name of partner, or agent), of _____ (name of Partnership acknowledging), on behalf of the partnership, who is personally known to me or who has produced _____ (type of identification) as identification.

My commission expires:

NOTARY PUBLIC

FIRM'S CERTIFICATION

Fill in Form

WHEN FIRM IS A CORPORATION

IN WITNESS WHEREOF, the FIRM hereto has executed this Form this _____ day
of _____, 20____.

Printed Name of Corporation

Printed State of Incorporation

By:

Signature of President or other authorized officer

Printed Name of President or other authorized officer

Address of Corporation

City/State/Zip

Business Phone Number

(CORPORATE SEAL)

ATTEST

By _____
Secretary

STATE OF _____

COUNTY OF _____

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this _____ (date) by _____ (name of officer or agent, title of officer or agent), of _____ (name of corporation acknowledging), a _____ (state or place of incorporation) corporation, on behalf of the corporation. He/she is personally known to me or who has produced _____ (type of identification) as identification.

My commission expires:

NOTARY PUBLIC

FIRM'S CERTIFICATION

Fill in Form

WHEN FIRM IS A SOLE PROPRIETORSHIP OR OPERATES UNDER A FICTITIOUS OR TRADE NAME

IN WITNESS WHEREOF, the FIRM hereto has executed this Form this _____ day
of _____, 20____.

Printed Name of FIRM

By:

Signature of Owner

Witness

Printed Name of Individual

Witness

Business Address

City/State/Zip

Business Phone Number

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this _____ (date) by _____ (name of personal acknowledging), who is personally known to me or who has produced _____ (type of identification) as identification.

My commission expires:

NOTARY PUBLIC

FIRM'S CERTIFICATION

Fill in Form

WHEN FIRM IS AN INDIVIDUAL

IN WITNESS WHEREOF, the FIRM hereto has executed this Form this _____ day
of _____, 20____.

By: _____
Signature of Individual

Witness

Printed Name of Individual

Witness

Business Address

City/State/Zip

Business Phone Number

STATE OF _____

COUNTY OF _____

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this _____ (date) by _____ (name of personal acknowledging), who is personally known to me or who has produced _____ (type of identification) as identification.

My commission expires:

NOTARY PUBLIC

COOPERATION WITH THE BROWARD COUNTY
OFFICE OF INSPECTOR GENERAL

TO BE RETURNED WITH BID

The Broward County Office of Inspector General (“OIG”) has the authority to review and investigate how governmental contracts are performed and how FIRM’s and vendors (herein, “FIRM’s”) are paid. To this end, FIRM agrees to cooperate with the OIG in the event the FIRM is contacted by the OIG. Such cooperation shall include, answering any questions that may be posed by the OIG, and allowing the OIG to review and copy any of FIRM’S written material, contract documentation, and financial records that may relate to the formulation, execution, and performance of this Contract. The FIRM acknowledges and agrees that whatever work or effort is expended by FIRM in interfacing with the OIG is part of the administrative or overhead or base costs of the services provided by the FIRM to the CITY, and shall never be a basis for claiming extra or additional compensation under this Contract, or for requesting a change order.

The FIRM’s failure to cooperate fully with the OIG as required by the preceding clause shall be a basis for the City claiming the FIRM is in default, and may, if not timely cured, allow the City to terminate this Contract for cause. Unless the FIRM is instructed otherwise in a specific written and notarized Order signed by the Broward County Inspector General, FIRM shall advise CITY, in writing and in the same manner as FIRM gives the City formal notice under this Contract, each instance, if ever, that the FIRM is contacted by the OIG, and shall supply the City with information necessary to allow the City to ensure that the FIRM is fully performing the requirements of this Paragraph.

WITNESSES:

NAME: _____

NAME: _____

BY: _____

NAME: _____

TITLE: _____

NOTARY BLOCK FOR AN INDIVIDUAL

STATE OF _____

COUNTY OF _____

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this _____ (date) by _____ (name of personal acknowledging), who is personally known to me or who has produced _____ (type of identification) as identification.

My commission expires:

NOTARY PUBLIC

NOTARY BLOCK FOR A CORPORATION

STATE OF _____

COUNTY OF _____

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this _____ (date) by _____ (name of officer or agent, title of officer or agent), of _____ (name of corporation acknowledging), a _____ (state or place of incorporation) corporation, on behalf of the corporation. He/she is personally known to me or who has produced _____ (type of identification) as identification.

My commission expires:

NOTARY PUBLIC

NOTARY BLOCK FOR A LIMITED LIABILITY COMPANY:

STATE OF _____

COUNTY OF _____

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this _____ (date) by _____ (name of member, manager, officer, or agent, title of member, manager, officer or agent), of _____ (name of company acknowledging), a _____ (state or place of formation) limited liability company, on behalf of the company, who is personally known to me or who has produced _____ (type of identification) as identification.

My commission expires:

NOTARY PUBLIC

SCRUTINIZED COMPANY CERTIFICATION

Fill in Form

TO BE RETURNED WITH BID

FIRM Name: _____
FIRM FEIN: _____
FIRM Authorized Representative Name and Title: _____
Address: _____
City: _____ State: _____ Zip: _____
Phone Number: _____
Email Address: _____

Section 287.135, Florida Statutes, prohibits agencies from contracting with companies for goods or services of any amount that are on the Scrutinized Companies that Boycott Israel List or that are participating in a boycott of Israel; or One million dollars or more if, at the time of bidding, FIRM is on the Scrutinized Companies with Activities in Sudan List or the Scrutinized Companies with Activities in the Iran Petroleum Energy Sector List, or has business operations in Cuba or Syria. The boycott Israel list is created pursuant to 215.4725 and the Sudan and Iran lists are created pursuant to section 215.473, Florida Statutes.

As the person authorized to sign on behalf of FIRM, I hereby certify that the undersigned company is not participating in a boycott of Israel, on the Scrutinized Companies with Activities in Sudan List or the Scrutinized Companies with Activities in the Iran Petroleum Energy Sector List, or that it does not have business operations in Cuba or Syria. I understand and agree that pursuant to section 287.135, Florida Statutes, the submission of a false certification; or being placed on the Scrutinized Companies that Boycott Israel List, or engaging in a boycott of Israel; or being placed on the Scrutinized Companies with Activities in Sudan List or the Scrutinized Companies with Activities in the Iran Petroleum Energy Sector List; or engaging in business operations in Cuba or Syria will be cause for the CITY to terminate this Agreement at the option of the CITY. In addition, FIRM may be subject to civil penalties, attorney's fees, and/or costs.

The scrutinized company list is maintained by the State Board of Administration and available at <http://www.sbafla.com/>.

Certified By: _____,
who is authorized to sign on behalf of the above referenced company.
Authorized Signature Print Name and Title: _____
Date: _____

***This form is being provided to comply with Florida Statute 287.135.**

COMPLIANCE UNDER SECTION 119.0701
FLORIDA STATUTES

TO BE RETURNED WITH PROPOSAL

The FIRM hereby certifies that it shall comply with public records laws, specifically to:

- (a) Keep and maintain public records required by the public agency to perform the service.
- (b) Upon request from the public agency's custodian of public records, provide the public agency with a copy of the requested records or allow the records to be inspected or copied within a reasonable time at a cost that does not exceed the cost provided in this chapter or as otherwise provided by law.
- (c) Ensure that public records that are exempt or confidential and exempt from public records disclosure requirements are not disclosed except as authorized by law for the duration of the contract term and following completion of the contract if the FIRM does not transfer the records to the public agency.
- (d) Upon completion of the contract, transfer, at no cost, to the public agency all public records in possession of the firm or keep and maintain public records required by the public agency to perform the service. If the FIRM transfers all public records to the public agency upon completion of the contract, the FIRM shall destroy any duplicate public records that are exempt or confidential and exempt from public records disclosure requirements. If the firm keeps and maintains public records upon completion of the contract, the firm shall meet all applicable requirements for retaining public records. All records stored electronically must be provided to the public agency, upon request from the public agency's custodian of public records, in a format that is compatible with the information technology systems of the public agency.

IF THE FIRM HAS QUESTIONS REGARDING THE APPLICATION OF CHAPTER 119, FLORIDA STATUTES, TO THE FIRM'S DUTY TO PROVIDE PUBLIC RECORDS RELATING TO THIS CONTRACT, CONTACT THE CUSTODIAN OF PUBLIC RECORDS AT 954-797-2237, abeggerow@plantation.org, 400 NW 73rd Avenue Plantation, FL 33317

As the person authorized to sign this statement, I certify that this FIRM agrees to comply with the above requirements.

FIRM: _____

By (sign): _____

Print Name: _____

NOTARY BLOCK FOR AN INDIVIDUAL

STATE OF _____

COUNTY OF _____

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this _____ (date) by _____ (name of personal acknowledging), who is personally known to me or who has produced _____ (type of identification) as identification.

My commission expires:

NOTARY PUBLIC

NOTARY BLOCK FOR A CORPORATION

STATE OF _____

COUNTY OF _____

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this _____ (date) by _____ (name of officer or agent, title of officer or agent), of _____ (name of corporation acknowledging), a _____ (state or place of incorporation) corporation, on behalf of the corporation. He/she is personally known to me or who has produced _____ (type of identification) as identification.

My commission expires:

NOTARY PUBLIC

NOTARY BLOCK FOR A LIMITED LIABILITY COMPANY:

STATE OF _____

COUNTY OF _____

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this _____ (date) by _____ (name of member, manager, officer, or agent, title of member, manager, officer or agent), of _____ (name of company acknowledging), a _____ (state or place of formation) limited liability company, on behalf of the company, who is personally known to me or who has produced _____ (type of identification) as identification.

My commission expires:

NOTARY PUBLIC

TRUTH IN NEGOTIATION STATEMENT

Fill in Form

TRUTH IN NEGOTIATION STATEMENT

Sworn Statement to be returned with Response to Solicitation

STATE OF _____

COUNTY OF _____

Before me, the undersigned authority, personally appeared _____, who, after being duly sworn, deposes and says as follows:

1. This sworn statement is submitted by _____, (entity submitting sworn statement), whose business address is _____, and its Federal Employer Identification Number (FEIN) is _____. (If the entity has no FEIN, include the Social Security Number of the Individual signing this sworn statement: _____).
2. My name is _____ (please print name of individual signing), and my relationship to the entity named above is _____, and I have personal knowledge of the statements made herein. I also have the authority to make this statement on behalf of _____, (entity submitting sworn statement).
3. Pursuant to Section 287.055(5)(a), Florida Statutes, for any lump-sum or cost-plus-a-fixed fee professional services contract over the threshold amount provided in Section 287.017, Florida Statutes for CATEGORY FOUR, the City requires the Respondent to execute this certificate.
4. I attest that any wage rates and other factual unit costs shown to the City, required by the City, or reflected in the Response to the City solicitation which resulted in this Contract are accurate, complete, and current. I further agree that the original agreement price and any additions thereto shall be adjusted to exclude any significant sums by which the City determines the agreement price was increased due to inaccurate, incomplete, or noncurrent wage rates and other factual unit costs. All such agreement adjustments shall be made within (1) year following the end of the contract. For purposes of this certificate, the end of the agreement shall be deemed to be the date of final billing or acceptance of the work by the City, whichever is later.

FURTHER AFFIANT SAYETH NAUGHT.

TRUTH IN NEGOTIATION STATEMENT

Fill in Form

NOTARY BLOCK FOR AN INDIVIDUAL

STATE OF _____

COUNTY OF _____

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this _____ (date) by _____ (name of personal acknowledging), who is personally known to me or who has produced _____ (type of identification) as identification.

My commission expires:

NOTARY PUBLIC

NOTARY BLOCK FOR A CORPORATION

STATE OF _____

COUNTY OF _____

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this _____ (date) by _____ (name of officer or agent, title of officer or agent), of _____ (name of corporation acknowledging), a _____ (state or place of incorporation) corporation, on behalf of the corporation. He/she is personally known to me or who has produced _____ (type of identification) as identification.

My commission expires:

NOTARY PUBLIC

TRUTH IN NEGOTIATION STATEMENT

Fill in Form

NOTARY BLOCK FOR A LIMITED LIABILITY COMPANY:

STATE OF _____

COUNTY OF _____

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this _____ (date) by _____ (name of member, manager, officer, or agent, title of member, manager, officer or agent), of _____ (name of company acknowledging), a _____ (state or place of formation) limited liability company, on behalf of the company, who is personally known to me or who has produced _____ (type of identification) as identification.

My commission expires:

NOTARY PUBLIC

FORM 4A DISCLOSURE OF BUSINESS TRANSACTION, RELATIONSHIP OR INTEREST

LAST NAME - FIRST NAME - MIDDLE INITIAL			OFFICE / POSITION HELD
MAILING ADDRESS			AGENCY OR ADVISORY BOARD
CITY	ZIP	COUNTY	ADDRESS OF AGENCY

HOW TO COMPLETE AND FILE THIS FORM:

Parts A and B of this form serve two different purposes. Part A is for advisory board members who wish to use an exemption in the ethics laws that is applicable only to advisory board members. Part B is for public officers and employees who wish to use a separate exemption that is applicable when the business entity involved is the sole source of supply within the political subdivision. In order to complete and file this form:

- **Fill out** Part A or Part B, as applicable.
- **Sign** and date the form on the reverse side.
- **File Part A** with the appointing body or person that will be waiving the restrictions of 112.313(3) or (7), Fla. Stat., prior to the waiver.
- **File Part B** with the governing body of the political subdivision in which the reporting person is serving, prior to the transaction.

PART A - DISCLOSURE OF TRANSACTION OR RELATIONSHIP CONCERNING ADVISORY BOARD MEMBER

WHO MUST COMPLETE THIS PART:

Sections 112.313(3) and 112.313(7), Florida Statutes, prohibit certain business relationships on the part of public officers and employees, including persons serving on advisory boards. See Part III, Chapter 112, Florida Statutes, and/or the brochure entitled "A Guide to the Sunshine Amendment and Code of Ethics for Public Officers and Employees" for more details on these prohibitions. However, Section 112.313(12), Florida Statutes, permits the appointing official or body to waive these requirements in a *particular instance* provided: (a) waiver by the appointing body must be upon a two-thirds affirmative vote of that body; or (b) waiver by the appointing person must be effected after a public hearing; *and* (c) in either case the advisory board member must fully disclose the transaction or relationship which would otherwise be prohibited by Subsections (3) or (7) of Section 112.313, Florida Statutes. This Part of Form 4A has been prescribed by the Commission on Ethics for such disclosure, *if and when applicable* to an advisory board member.

PLEASE COMPLETE THE FOLLOWING:

- The partnership, directorship, proprietorship, ownership of a material interest, position of officer, employment, or contractual relationship which would otherwise violate Subsection (3) or (7) of Section 112.313, Florida Statutes, is held by [please check applicable space(s)]:

() The reporting person;

() The spouse of the reporting person, whose name is _____; or

() A child of the reporting person, whose name is _____.
- The particular transaction or relationship for which this waiver is sought involves [check applicable space]:

() Supplying the following realty, goods, and/or services: _____.

() Regulation of the business entity by the governmental agency served by the advisory board member.
- The following business entity is doing business with or regulated by the governmental agency:

_____.
- The relationship of the undersigned advisory board member, or spouse or child of the advisory board member, to the business entity transacting this business is [check applicable spaces]:
() Officer; () Partner; () Associate; () Sole proprietor; () Stockholder; () Director; () Owner of in excess of 5% of the assets of capital stock in such business entity; () Employee; () Contractual relationship with the business entity;
() Other, please describe:

PART B - DISCLOSURE OF INTEREST IN SOLE SOURCE OF SUPPLY

WHO MUST COMPLETE THIS PART:

Sections 112.313(3) and 112.313(7), Florida Statutes, prohibit certain employment and business relationships on the part of public officers and employees. See Part III, Chapter 112, Florida Statutes, and/or the brochure entitled "A Guide to the Sunshine Amendment and Code of Ethics for Public Officers and Employees" for more details on these prohibitions. However, Section 112.313(12)(e), Florida Statutes, provides an exemption from the above-mentioned restrictions in the event that the business entity involved is the only source of supply within the political subdivision of the officer or employee. In such cases the officer's or employee's interest in the business entity must be fully disclosed to the governing body of the political subdivision. This Part of Form 4A has been prescribed by the Commission on Ethics for such disclosure, *if and when applicable*.

PLEASE COMPLETE THE FOLLOWING:

1. The partnership, directorship, proprietorship, ownership of a material interest, position of officer, employment, or contractual relationship which would otherwise violate Subsection (3) or (7) of Section 112.313, Florida Statutes, is held by [please check applicable space(s)]:

☐ The reporting person;

☐ The spouse of the reporting person, whose name is _____; or

☐ A child of the reporting person, whose name is _____.
2. The following are the goods, realty, or services being supplied by a business entity with which the public officer or employee, or spouse or child of such officer or employee, is involved is:

_____.
3. The business entity which is the only source of supply of the goods, realty, or services within the political subdivision is:

(NAME OF ENTITY) (ADDRESS OF ENTITY)
4. The relationship of the undersigned public officer or employee, or spouse or child of such officer or employee, to the business entity named in Item 3 above is [check applicable spaces]:
☐ Officer; ☐ Partner; ☐ Associate; ☐ Sole proprietor; ☐ Stockholder; ☐ Director; ☐ Owner of in excess of 5% of the assets or capital stock in such business entity; ☐ Employee; ☐ Contractual relationship with the business entity;
☐ Other, please describe:

SIGNATURE

SIGNATURE	DATE SIGNED	DATE FILED

NOTICE: UNDER PROVISIONS OF FLORIDA STATUTES s. 112.317, A FAILURE TO MAKE ANY REQUIRED DISCLOSURE CONSTITUTES GROUNDS FOR AND MAY BE PUNISHED BY ONE OR MORE OF THE FOLLOWING: IMPEACHMENT, REMOVAL OR SUSPENSION FROM OFFICE OR EMPLOYMENT, DEMOTION, REDUCTION IN SALARY REPRIMAND, OR A CIVIL PENALTY NOT TO EXCEED \$10,000.

CITY OF PLANTATION
E-VERIFY FORM UNDER SECTION 448.095, FLORIDA STATUTES

TO BE RETURNED WITH BID

Project Name: _____

Project No.: _____

1. Definitions:

“*Firm*” means a person or entity that has entered or is attempting to enter into a contract with a public employer to provide labor, supplies, or services to such employer in exchange for salary, wages, or other remuneration. “Firm” includes, but is not limited to, a vendor or consultant.

“*Sub-Firm*” means a person or entity that provides labor, supplies, or services to or for a firm or another sub-firm in exchange for salary, wages, or other remuneration.

“E-Verify system” means an Internet-based system operated by the United States Department of Homeland Security that allows participating employers to electronically verify the employment eligibility of newly hired employees.

2. Effective January 1, 2021, Firms, shall register with and use the E-verify system in order to verify the work authorization status of all newly hired employees. Firm shall register for and utilize the U.S. Department of Homeland Security’s E-Verify System to verify the employment eligibility of:

- a) All persons employed by a Firm to perform employment duties within Florida during the term of the contract; and
- b) All persons (including subvendors/subconsultants/subcontractors) assigned by Firm to perform work pursuant to the contract with the City of Plantation. The Firm acknowledges and agrees that registration and use of the U.S. Department of Homeland Security’s E-Verify System during the term of the contract is a condition of the contract with the City of Plantation; and

- c) Should vendor become the successful Firm awarded for the above-named project, by entering into the contract, the Firm shall comply with the provisions of Section 448.095, Fla. Stat., "Employment Eligibility," as amended from time to time. This includes, but is not limited to registration and utilization of the E-Verify System to verify the work authorization status of all newly hired employees. Firm shall also require all sub-firms to provide an affidavit attesting that the sub-firm does not employ, contract with, or subcontract with, an unauthorized alien. The Firm shall maintain a copy of such affidavit for the duration of the contract.

3. Contract Termination

- a) If the City has a good faith belief that a person or entity with which it is contracting has knowingly violated s. 448.09 (1) Fla. Stat., the contract shall be terminated.
- b) If the City has a good faith belief that a sub-firm knowingly violated s. 448.095 (2), but the Firm otherwise complied with s. 448.095 (2) Fla. Stat., shall promptly notify the Firm and order the Firm to immediately terminate the contract with the sub-firm.
- c) A contract terminated under subparagraph a) or b) is not a breach of contract and may not be considered as such.
- d) Any challenge to termination under this provision must be filed in the Circuit Court no later than 20 calendar days after the date of termination.
- e) If the contract is terminated for a violation of the statute by the Firm, the Firm may not be awarded a public contract for a period of 1 year after the date of termination.

FIRM: _____

By (sign): _____

Print Name: _____

NOTARY BLOCK FOR AN INDIVIDUAL

STATE OF _____

COUNTY OF _____

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this _____ (date) by _____ (name of personal acknowledging), who is personally known to me or who has produced _____ (type of identification) as identification.

My commission expires: _____

NOTARY PUBLIC

NOTARY BLOCK FOR A CORPORATION

STATE OF _____

COUNTY OF _____

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this _____ (date) by _____ (name of officer or agent, title of officer or agent), of _____ (name of corporation acknowledging), a _____ (state or place of incorporation) corporation, on behalf of the corporation. He/she is personally known to me or who has produced _____ (type of identification) as identification.

My commission expires: _____

NOTARY PUBLIC

E-VERIFY FORM

Fill in Form

NOTARY BLOCK FOR A LIMITED LIABILITY COMPANY:

STATE OF _____

COUNTY OF _____

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this _____ (date) by _____ (name of member, manager, officer, or agent, title of member, manager, officer or agent), of _____ (name of company acknowledging), a _____ (state or place of formation) limited liability company, on behalf of the company, who is personally known to me or who has produced _____ (type of identification) as identification.

My commission expires:

NOTARY PUBLIC

Bid Checklist and Summary Form

To comply with the City of Plantation's solicitation guidelines, this Bid Checklist Summary Form is **required for all solicitations exceeding \$25,000.00 or more.**

This form must be signed and included with the bid submittal in addition to the required bid documents of this solicitation. Failure to do so may result in your bid submittal being considered non-responsive.

Bidder's Name: _____ **Date:** _____

Base Bid Total: _____

Plantation Local Business pursuant to Section 2-227 of City's Code: Yes ☐ or No ☐

Disadvantaged Business Enterprise: Yes ☐ or No ☐

Submitted Forms:

- | | |
|---|---|
| ☐ Qualification Form | ☐ References |
| ☐ Insurance Requirements | ☐ Drug-Free Workplace |
| ☐ Public Entity Crimes | ☐ Non-Collusion Certification |
| ☐ Firm Certification | ☐ OIG |
| ☐ Scrutinized Company | ☐ Public Records |
| ☐ Truth in Negotiation | ☐ Disclosure of Business Transaction |
| ☐ E-Verify | ☐ Addendums |
| ☐ Qualification Packet | |

Signature: _____

Printed Name: _____